

23STCV19093 23STCV19093

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Case Number: 23STCV19093 Hearing Date: July 17, 2026 Dept: 11

Preliminary

Approval of Class Action Settlement

Department

15

Hernandez

v. Cal Cartage Warehousing, et al.

Case Number: 23STCV19093

Hearing Date: July 17,
2026

TENTATIVE
RULING

Prior to

preliminary approval being granted, counsel need to address the following:

1. The escalator clauses at Settlement

Agreement at ¶18 provides Defendant with the option to “end the PAGA Period on the date that the total pay periods equal 4,400 total Pay Periods.” (Settlement Agreement, ¶18) However, the parties must resolve any uncertainty regarding the PAGA Period end date prior to preliminary approval being granted and notice being distributed. Based on current records, the parties and the administrator must review and verify the workweek total and confirm the end date of the PAGA Period, revise the PAGA Period definition if needed, and remove the period-shortening

option from the escalator clause. Ensure that the notice is modified to match any alterations to the Settlement Agreement.

2. Make it clear in the Notice that

Responses can be faxed and emailed as well as mailed to the Administrator.

BACKGROUND

This is a wage and hour class action. Defendants is a logistics provider that has separate entities in various sects of transportation. On August 10, 2023, Plaintiff commenced this Action by filing a Complaint alleging causes of action against Defendants for failure to pay wages (minimum, overtime, and regular rate), failure to provide meal periods, failure to authorize and provide rest breaks, failure to timely pay final wages at termination, failure to indemnify for necessary business expenses, failure to provide accurate itemized wage statements, and unfair business practices.

On

September 29, 2023, Defendant removed this action to the United States District Court for the Central District of California.

Plaintiff

sent a letter to the Labor and Workforce Development Agency ("LWDA"), pursuant to California Labor Code § 2699.3, providing notice of her intent to seek civil penalties under the Private Attorneys General Act, California Labor Code § 2698, et seq.

On

November 1, 2023, Plaintiff filed the Operative First Amended Complaint alleging an additional cause of action against Defendants for civil penalties under the Private Attorneys General Act ("PAGA").

On

April 9, 2025, the United States District Court for the Central District of California granted the Parties' stipulation to remand this action to state court for settlement purposes.

Counsel

represents that the parties conducted informal and formal discovery and investigation of the facts and law, which included, inter alia: 1) the exchange

of data and discoverable information in preparation for the mediation session;
2) analysis of time clock, pay and other data pertaining to Plaintiff and the Class during the relevant Settlement Period, including but not limited to the numbers of former and current members of the Class, average workweeks and pay periods, and average rate of hourly pay; 3) interviews of Settlement Class Members Time and pay data were used for Plaintiff's pre-mediation analysis; and
4) Defendants production of other data pertaining to Plaintiff and the Class during the relevant Class Period, including but not limited documents reflecting wage and hour policies and practices during the Class Period (e.g., the relevant employee handbook).

On

March 27, 2025, the Parties participated in an all-day mediation presided over by Mike Ludwig, Esq., which led to this Agreement to settle the Action. On January 20, 2026, counsel filed a fully executed long from settlement agreement with the Court attached as Exhibit 1 to the Declaration of Scott Leviant ("Leviant Decl.").

Now before the Court is the motion for preliminary approval of the settlement agreement.

SETTLEMENT

CLASS DEFINITION

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"Class" means all non-exempt employees employed by Horizon Personnel Services, Inc. and placed to work at Defendant in California during the Class Period. (Settlement Agreement, ¶1.5.)

o

"Class Period" means the period from August 10, 2019, through February 1, 2023. (¶1.12)

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"Aggrieved Employee(s)" means all non-exempt employees employed by Defendant, and all non-exempt employees employed by Horizon Personnel Services, Inc. placed to work at Defendant, in California at any time during the PAGA Period. (¶1.4)

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“PAGA Period” means the period from August 9, 2022, through the date that the Court grants preliminary approval of the Class settlement. (¶1.30)

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Based on its records, Defendant estimates that, as of the date of this Settlement Agreement, (1) there are 305 Class Members and 4,135 Total Workweeks during the Class Period and (2) there were 174 Aggrieved Employees who worked 4,000 Pay Periods from August 9, 2022 to the date of mediation on March 27, 2025. If the number of actual Pay Periods at the close of the PAGA Period increases by more than 10% (i.e., 4,400), Defendant may, at its election, opt to (a) increase the Gross Settlement Amount in the exact proportionate amount as to any additional pay periods above 4,400 Pay Periods or (b) end the PAGA Period on the date that the total pay periods equal 4,400 total Pay Periods. (¶18)

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The parties agree to class certification for the purposes of settlement. (¶12.1)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

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The Gross Settlement Amount (“GSA”) is \$200,000, non-reversionary. (¶13.1)

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The Net Settlement Amount (“Net”) (\$83,008.33) is the GSA minus the following:

- o Up to \$66,666.67 (33%) for attorney fees (¶13.2.2)

- o Up to \$18,000 for litigation costs (Ibid.);

o Up to \$10,000 for a Service Payment to the Named Plaintiff (¶3.2.1);

o Up to \$7,325 for settlement administration costs (¶3.2.3);

o Payment of \$15,000 (75% of \$20,000 PAGA penalty) to the LWDA. (¶3.2.5)

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Defendant

will also pay employer-side taxes. (¶3.1)

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Funding

of Settlement: Defendant shall fully fund the Gross Settlement Amount, and also fund the amounts necessary to fully pay Defendant's share of payroll taxes by transmitting the funds to the Administrator no later than 5 days after the Effective Date. (¶4.1)

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Disbursement

of GSA: Within 14 days after Defendant funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payment shall not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶4.2)

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There

is no claim form requirement. (¶3.1)

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Participating Class Member Payment: An Individual Class Payment calculated by (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period and (b)

multiplying the result by each Participating Class Member's Workweeks. (§3.2.4) Non-Participating Class Members will not receive

any Individual Class Payments. The Workweeks of Non-Participating Class Members are not included in the calculation of payments to Participating Class Members and therefore have no effect on the calculation of Individual Class Payments paid from the Net Settlement Amount. (§3.2.4.2)

o Tax Allocation: 20% as wages; 80% as interest and penalties.
(§3.2.4.1)

· PAGA Payments: The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 25% share of PAGA Penalties by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Period Pay Periods. (§3.2.5.1) If the Court approves PAGA Penalties of less than the amount requested, the Administrator will allocate the remainder to the Net Settlement Amount. (§3.2.5.2)

o

Tax

Allocation:

100% penalties. (Ibid.)

· "Response

Deadline" means forty-five (45) days after the Administrator mails Notice to Class Members and Aggrieved Employees, and shall be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Class portion of the Settlement, or (b) fax, email, or mail his or her Objection to the Settlement. The Response Deadline for Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator shall be the longer of the original Response Deadline or 14 calendar days from the date of remailing of the Notice Packet. (§1.42) The same deadlines apply to submission of disputes. (§7.7)

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If the number of valid Requests for Exclusion exceeds 5% of the total of all Class Members, Defendant may withdraw from the Settlement. (§9)

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Payments

to Class Members without Known SSNs: Because Social Security Numbers ("SSNs") for some Class Members are not known, the Administrator shall perform a pre-mailing skip trace on all Class Members Class Data is incomplete, in an effort to identify mailing addresses and SSNs for as many Class Members as possible. Class Members for whom addresses are located by SSNs are not known will be advised to communicate their SSN to the Administrator. At the time of distribution, the Administrator will make distributions based on whether SSNs are known as follows: (§4.2.1)

o For Class Members whose SSNs are located or communicated to the Administrator, their full disbursement of Individual Class Payments and Individual PAGA Payments shall proceed as described below, beginning at Paragraph 4.2.2. (§4.2.1.1)

o For Class Members whose SSNs are not known, but a mailing address is located, the Administrator will distribute any interest or penalty payment portion of the Individual Class Payment and any Individual PAGA Payment, up to an aggregate amount of \$599.00. The balance of any undistributed Individual Class Payment and/or undistributed Individual PAGA Payment will be directed to the California Controller's Unclaimed Property Fund in the name of the Class Member. The limitation on distributions described in this paragraph shall be applied to the distribution process described below, beginning at Paragraph 4.2.2. (§4.2.1.2)

o At the present time, it is estimated that the Class includes slightly more than 300 Class Members, while more complete Class Data is available for approximately 200 Class Members. (§7.5.2) For Class Members whose SSNs are not know at the time the Notice issues, an IRS w-9 Form for providing a SSN to the Administrator will be included with the Notice. (§7.5.3)

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Uncashed Settlement Checks: The Administrator will cancel all checks not cashed by the void date (not less than 180 days after the date of mailing).

(§4.2.2) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of

the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure § 384(b). (¶4.2.4)

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The
settlement administrator is Phoenix Class Action Administration
Solutions. (¶1.2)

· Counsel
has submitted the proposed settlement agreement to the LWDA on January 19, 2026.
(Exhibit 2 to Leviant Decl.)

· Participating
class members and the named Plaintiff will release certain claims against
Defendants. (See further discussion
below)

ANALYSIS OF SETTLEMENT AGREEMENT

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Does
a presumption of fairness exist?

1.

Was the settlement reached through
arm's-length bargaining? Yes. On March 27, 2025, the Parties
participated in an all-day mediation presided over by Mike Ludwig, Esq., which
led to this Agreement to settle the Action. (Leviant Decl., ¶ 8.)

2.

Were investigation and discovery
sufficient to allow counsel and the court to act intelligently?
Yes. Counsel represents that the
parties conducted informal and formal discovery and investigation of the facts
and law, which included, inter alia: 1) the exchange of data and discoverable
information in preparation for the mediation session; 2) analysis of time
clock, pay and other data pertaining to Plaintiff and the Class during the
relevant Settlement Period, including but not limited to the numbers of former
and current members of the Class, average workweeks and pay periods, and

average rate of hourly pay; 3) interviews of Settlement Class Members Time and pay data were used for Plaintiff's pre-mediation analysis; and 4) Defendants production of other data pertaining to Plaintiff and the Class during the relevant Class Period, including but not limited documents reflecting wage and hour policies and practices during the Class Period (e.g., the relevant employee handbook). (Id. at ¶¶6-7.)

3.

Is counsel experienced in similar litigation? Yes. Class Counsel is experienced in class action litigation, including wage and hour class action cases. (Id. at ¶¶21-25.)

4.

What percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.")

CONCLUSION: The settlement is entitled to a presumption of fairness.

· Is the settlement fair, adequate, and reasonable?

1.

Strength of Plaintiffs' case. "The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Counsel provided the following exposure analysis:

Claim

Max Recovery

Reduced Recovery

Unpaid Wages
(OTC)

\$18,706.00

\$2,244.72

Unpaid Wages (RR)

\$102.00

\$49.98

Meal Period Violations

\$8,721.00

\$1,744.20

Rest Break Violations

\$69,769.00

\$6,279.21

Expenses

\$15,250.00

\$1,830.00

Labor Code

§226

\$86,950.00

\$7,825.50

Labor Code

§203

\$1,251,830.00

\$112,664.70

PAGA

\$545,050.00

\$81,757.50.00

Total

\$1,996,378.00

\$132,638.31

(Leviant Decl., ¶18.)

2.

Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status

through trial. Even if a class is

certified, there is always a risk of decertification. (See *Weinstat*

v. Dentsply Intern., Inc. (2010) 180

Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that

trial courts should retain some flexibility in conducting

class actions, which means, under

suitable circumstances, entertaining successive motions on certification if the

court subsequently discovers that the propriety of a class action is not

appropriate.”).)

4. Amount

offered in settlement. Counsel has negotiated a Settlement of \$200,000, which is

approximately 10% of the maximum potential exposure, which is in the ballpark

of reasonableness.

The

\$200,000 settlement amount, after reduction by the requested deductions, leaves \$83,008.33 to be divided among approximately 305 employees. Thus, the resulting payments will average \$272.16. ($\$83,008.33 / 305 = \272.16)

5. Extent

of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience

and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a

governmental participant. This factor is not applicable here.

8. Reaction

of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object and or opt-out. This factor becomes relevant during the fairness hearing.

CONCLUSION:

The settlement can be preliminarily deemed "fair, adequate, and reasonable."

Scope

of the release

Effective on the date when Defendant fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶15)

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All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release Released Parties from (i) all claims that were alleged, or reasonably could

have been alleged, based on the facts contained in the Operative Complaint and the PAGA Notice and all claims that were, or reasonably could have been alleged based on facts ascertained during the Action including, e.g., all claims for (1) Failure to Pay Minimum Wages; (2) Failure to Pay Overtime Compensation; (3) Failure to Provide Meal Periods; (4) Failure to Authorize and Permit Rest Breaks; (5) Failure to Indemnify Necessary Business Expenses; (6) Failure to Timely Pay Final Wages at Termination; (7) Failure to Provide Accurate Itemized Wage Statements; and (8) Unfair Business Practices (Bus. & Prof. Code § 17200, et seq.). Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (§15.2)

The LWDA and all Class Members who are Aggrieved Employees are deemed to release, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, the Released Parties from all claims for civil penalties under PAGA, based on the facts and Labor Code sections that were alleged or reasonably could have been alleged, based on the facts contained in the Operative Complaint and the PAGA Notice and all PAGA claims that were, or reasonably could have been alleged based on facts ascertained during the Action. (§15.3)

"Released Parties" means Defendant and any of its past, present and future direct or indirect parents, subsidiaries, predecessors, successors, assigns, and affiliates, joint venturers, as well as its past, present and future owners, officers, directors, employees, associates, partners, shareholders, members, agents, attorneys, insurers, reinsurers, and any individual or entity that could be jointly liable with Defendant including but not limited to Case No.: 23STCV19093 Page 5 Hernandez v. Cal Cartage Warehousing & Transloading, LLC, et al. Horizon Personnel Services, Inc. and/or Employer's Outsourcing, Inc. (§1.40)

The named Plaintiff will also provide a general release and 1542 waiver as to

Defendant. (¶5.1)

· May conditional
class certification be granted?

1.

Standards

A

detailed analysis of the elements required for class certification is not required, but it is advisable to review each element when a class is being conditionally certified (*Amchem Products, Inc. v. Winsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn. 19.)

Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba* at 240.)

2.

Analysis

a.

Numerosity. There are approximately
305 class members. (*Leviant Decl.*, ¶35.)

This element is met.

b.

Ascertainability. The proposed class is defined above. The class definition is “precise, objective and presently ascertainable.” (*Sevidal v. Target Corp.* (2010) 189 Cal.App.4th 905, 919.) Class Members are identifiable through Defendant’s records. (*Leviant Decl.*, ¶35.)

c.

Community of interest. “The community of interest requirement involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of

the class; and (3) class representatives who can adequately represent the class.” (Linder v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

Counsel

contends that here common questions include, but are not limited to: i. Whether or not Defendants paid proper wages to the Class; ii. Whether or not Defendants provided meal periods to the Class; iii. Whether or not Defendants provided rest periods to the Class; iv. Whether or not Defendants paid compensation timely upon separation of employment to former Class Members; v. whether or not Defendants paid compensation timely throughout Class Members’ employment; vi. Whether or not Defendants provided accurate itemized wage statements to the Class; and, vii. Whether or not Defendants engaged in unlawful or unfair business practices affecting the Class in violation of California Business and Professions Code §§ 17200-17208. (Leviant Decl., ¶37.)

Counsel further contends that Plaintiff is

typical of the Class because: 1) Plaintiff was employed by Defendant; 2) Plaintiff worked during the Class Period; 3) Plaintiff experienced work under policies and procedures impacting wage and hour compliance; 4) Plaintiff has claims typical of the claims of the Class proposed in this settlement; and 4) no unique defenses applicable to Plaintiff have been identified that do not also exist as to other Class Members. (Id. at ¶36.)

Finally, Plaintiff is an adequate class

member because he has no conflicts with the class and is represented by competent counsel. (Id. at ¶39; Declaration of Plaintiff Hernandez, passim.)

d.

Adequacy of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.

Superiority. Given the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

· Is the notice

proper?

a.

Content of class notice. The

proposed notice is attached to the Settlement Agreement. Its content appears to be acceptable. It includes information

such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; attorney fees and costs; enhancement awards; the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing. [Make it clear in the Notice that

Responses can be faxed and emailed as well as mailed to the Administrator.]

b.

Method

of class notice.

Notice will be via direct mail. Not later than 14 days after the Court grants

Preliminary Approval of the Settlement, Defendant will deliver the Class Data

to the Administrator, in the form of a Microsoft Excel spreadsheet or

comparable data file. (§7.4) Because critical portions of the Class Data, including

addresses and SSNs, are not known for some Class Members and are not known to

Defendant, the Administrator shall perform a pre-mailing skip trace for any

Class Members where essential Class Data is missing, using any available

information known about the Class Member, in an effort to identify SSNs and

mailing addresses for as many Class Members as possible. At the present time,

it is estimated that the Class includes slightly more than 300 Class Members,

while more complete Class Data is available for approximately 200 Class

Members. (§7.5.2) Using best efforts to perform as soon as possible, and in no

event later than 14 days after receiving the Class Data, the Administrator will

send to all Class Members identified in the Class Data, via first-class USPS

mail, the Class Notice, with Spanish translation to all Class Members

identified in the Class Data, via first-class USPS mail, the Class Notice. Before mailing Class Notices, the

Administrator will update Class Member addresses using the National Change of

Address database. (§7.5.3) Not later than 7 business days after the

Administrator's receipt of any Class Notice returned by the USPS as

undelivered, the Administrator shall re-mail the Class Notice using any

forwarding address provided by the USPS. If the USPS does not provide a forwarding

address, the Administrator shall conduct a Class Member Address Search, and

re-mail the Class Notice to the most current address obtained. The

Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (§7.5.4) If the Administrator, Defendant, or Class Counsel is contacted by or otherwise discovers any persons who believe they should have been included in the Class Data and should have received Class Notice, the Parties will expeditiously meet and confer in person or by telephone, and in good faith, in an effort to agree on whether to include them as Class Members. If the Parties agree, such persons will be Class Members entitled to the same rights as other Class Members, and the Administrator will send, via email or overnight delivery, a Class Notice requiring them to exercise options under this Agreement not later than 14 days after receipt of Class Notice, or the deadline dates in the Class Notice, whichever ever are later. (§7.5.6) Notice of Final Judgment will be posted on the Settlement Administrator's website. (§7.9.1)

c.

Cost

of class notice.

As indicated above, claims administration costs are estimated to equal approximately \$7,325. Prior to the time of the final fairness hearing, the claims administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

· Attorney fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately,

the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM

Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize

the percentage method, cross-checked by the lodestar. (*Laffitte v. Robert Half Int'l, Inc.* (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (*Garabedian v. Los Angeles Cellular Telephone Company* (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to \$66,666.67 (33%) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class

Counsel should also be prepared to justify the costs (capped at \$18,000) sought by detailing how they were incurred.

· Incentive Award
to Class Representative

Class Counsel will seek an Enhancement Award of \$10,000 to the named Plaintiff. In connection with the final fairness hearing, the named Plaintiff must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they "should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class." (*Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with "nothing more than pro forma claims as to 'countless' hours expended, 'potential stigma' and 'potential risk.' Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was 'necessary to induce [the named plaintiff] to participate in the suit'" (*Id.* at 806-807, italics and ellipsis in original.) The Court will decide the issue of the enhancement award at the time of final approval.